

11.	24CV1204	JULIE E BROWN ET AL VS. CHARLES B SUMNER
SUMMARY ADJUDICATION		

ON THE COURT'S OWN MOTION DUE TO LACK OF JUDICIAL COVERAGE, THE COURT WILL HEAR THIS MATTER ON AUGUST 28, 2026, AT 8:30 A.M. IN DEPARTMENT NINE. THERE WILL BE NO HEARING ON AUGUST 14, 2026. SHOULD A PARTY WISH TO REQUEST ORAL ARGUMENT, THE BELOW PROCEDURES REMAIN IN EFFECT.

Defendant/Cross-Complainant, Charles B. Sumner ("Cross-Complainant"), moves for summary adjudication on his First Cause of Action for Partition by Sale of 5120 Oak Leaf Cir., Placerville, CA 95667 pursuant to Code of Civil Procedure §§ 437(c)(f)(1), 872.720, and 873.010.

The motion is made on the grounds that 1) the Cross-Complainant and Cross-Defendant jointly own the Subject Property as tenants in common pursuant to that transfer dated November 17, 2021 recorded in the official records of the County of El Dorado as Document No. 2021-0071360, (2) Cross-Complainant and Cross-Defendant constitute all of the persons with legal title ownership interests of record in the Subject Property, (3) Cross-Complainant has not waived his right to partition the Subject Property, (4) the ownership interests of the Parties are clear and beyond reasonable dispute, (5) the Subject Property cannot feasibly be divided in kind and sale is the only viable option for partition, (6) there is no dispute as to any material fact, and thus no need for a trial, to adjudicate the factors justifying a partition by sale and therefore the Court can and should enter an interlocutory judgment of sale.

Defendant also seeks an order appointing Referee Chad Phillips to act as the Court's appointed referee to fulfill the sale pursuant to Code of Civil Procedure § 873.010 et seq.

Legal Principles

[S]ummary judgment or summary adjudication is to be granted when there is no triable issue of material fact and the moving party is entitled to judgment as a matter of law." (*Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 894–895, 83 Cal.Rptr.3d 146.) The "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact." *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 861–862, 107 Cal.Rptr.2d 841, 24 P.3d 493.

Under summary judgment law, any party to an action, whether plaintiff or defendant, "may move" the court "for summary judgment" in his favor on a cause of action (i.e., claim) or defense (Code Civ. Proc., § 437c, subd. (a))—a plaintiff "contend[ing] ... that there is no defense to the action," a defendant "contend[ing] that the action has no merit" (*ibid.*). The court must

“grant[]” the “motion” “if all the papers submitted show” that “there is no triable issue as to any material fact” (*id.*, § 437c, subd. (c))—that is, there is no issue requiring a trial as to any fact that is necessary under the pleadings and, ultimately, the law (see *Riverside County Community Facilities Dist. v. Bainbridge* 17 (1999) 77 Cal.App.4th 644, 653 [92 Cal.Rptr.2d 29]; *Kelly v. First Astri Corp.* (1999) 72 Cal.App.4th 462, 470 [84 Cal.Rptr.2d 810])—and that the “moving party is entitled to a judgment as a matter of law” (Code Civ. Proc., § 437c, subd. (c)). The moving party must “support[]” the “motion” with evidence including “affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice” must or may “be taken.” (*Id.*, § 437c, subd. (b).)

Likewise, any adverse party may oppose the motion, and, “where appropriate,” must present evidence including “affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice” must or may “be taken.” (*Ibid.*) An adverse party who chooses to oppose the motion must be allowed a reasonable opportunity to do so. (*Id.*, § 437c, subd. (h).) In ruling on the motion, the court must “consider all of the evidence” and “all” of the “inferences” reasonably drawn therefrom (*id.*, § 437c, subd. (c)), and must view such evidence (e.g., *Molko v. Holy Spirit Assn., supra*, 46 Cal.3d at p. 1107; *Stationers Corp. v. Dun & Bradstreet, Inc.* (1965) 62 Cal.2d 412, 417 [42 Cal.Rptr. 449, 398 P.2d 785]) and such inferences (see, e.g., *Crouse v. Brobeck, Phleger & Harrison* (1998) 67 Cal.App.4th 1509, 1520 [80 Cal.Rptr.2d 94] [review on appeal]; *Ales-Peratis Foods Internat., Inc. v. American Can Co.* (1985) 164 Cal.App.3d 277, 280, fn. * [209 Cal.Rptr. 917] [same]), in the light most favorable to the opposing party. *Aguilar v. Atl. Richfield Co.*, 25 Cal. 4th 826, 843, 24 P.3d 493 (2001), as modified (July 11, 2001).

Discussion

Cross-Complainant’s First Cause of Action is for Partition and Accounting. At issue is the real property and residence located at 5120 Oak Leaf Cir., Placerville, CA 95667 (the “Subject Property”). The Subject Property consists of approximately 10.26 acres of land and a residential structure of approximately 2,759 square feet of habitable area, as well as other structures and improvements.

Cross-Complainant argues that he and Plaintiff equally share title to the Subject Property as tenants in common. The Deed of the Subject Property indicates the grantees as “Julie E. Brown, Trustee of The Julie E. Brown Revocable Trust dated November 24, 2015 and Charles Sumner, an unmarried man as tenants in common.” Cross-Complainant seeks a partition by sale of the property, as it would not be reasonably possible to divide the Subject Property in kind. Cross-Complainant further argues that no waiver exists, as there has been no discussion of waiver in this matter, and no party knowingly or intentionally waived the right to partition the Subject Property.

Cross-Defendant argues that she is entitled to an appraisal and to purchase Cross-Complainant's interest in the Subject Property. Cross-Defendant asserts that she has requested a partition by appraisal and has pled a cause of action for such, which she contends is the more equitable remedy. Cross-Defendant alleges that she qualifies to refinance the loan in her own name and has the assets to purchase the Subject Property. An appraisal performed on May 12, 2026, indicates a value of \$900,000. Cross-Defendant further argues that she is entitled to an accounting pursuant to Code of Civil Procedure § 872.140 as she has paid a debt or obligation which she is entitled as a matter of right to have Cross-Complainant refund to her.

Except as provided in Section 872.730, partition as to concurrent interests in the property shall be as of right unless barred by a valid waiver. Code of Civil Procedure § 872.710(b).

The court shall order that the property be divided among the parties in accordance with their interests in the property as determined in the interlocutory judgment. Code of Civil Procedure § 872.810. When the court determines that, under the circumstances, sale and division of the proceeds would be more equitable than division of the property, the court shall order the property be sold and the proceeds be divided among the parties in accordance with their interests in the property. Code of Civil Procedure § 872.820.

The undisputed facts and evidence support a finding that the Parties are equal joint owners of the Subject Property and no valid waiver exists. As such, Cross-Complainant is entitled to partition as a matter of law. The Court further finds that the undisputed facts and evidence support a finding that it would not be reasonably possible to divide the Subject Property in kind.

As Cross-Defendant has not presented any evidence that a triable issue of material fact exists, Cross-Complainant's Motion for Summary Adjudication is granted.

The Partition of Real Property Act ("PRPA") applies to actions for partition of real property filed on or after January 1, 2023, regarding real property held in tenancy in common where there is no agreement in a record binding all the cotenants which governs the partition of the property. Code of Civil Procedure § 874.311.

Code of Civil Procedure § 874.316 instructs, in part:

(a) Except as otherwise provided in subdivisions (b) and (c), the court shall determine the fair market value of the property by ordering an appraisal pursuant to subdivision (d).

(d) If the court orders an appraisal, the court shall appoint a disinterested real estate appraiser licensed in the State of California to determine the fair market value of the property assuming sole ownership of the fee simple estate. On completion of the appraisal, the appraiser shall file a sworn or verified appraisal with the court.

Code of Civil Procedure § 874.317 provides, in part:

(a) If any cotenant requested partition by sale, the court shall, after the determination of value under Section 874.316, send notice to the parties that any cotenant except a cotenant that requested partition by sale may buy all the interests of the cotenants that requested partition by sale.

(b) Not later than 45 days after the notice is sent under subdivision (a), any cotenant except a cotenant that requested partition by sale may give notice to the court that it elects to buy all the interests of the cotenants that requested partition by sale.

The Court finds the PRPA applies to the Subject Property and accordingly orders that the partition shall proceed in accordance with the Act.

TENTATIVE RULING #11:

CROSS-COMPLAINANT’S MOTION FOR SUMMARY ADJUDICATION IS GRANTED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.